

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                         |                                                                                                        |                                            |                                                        |                                               |                                 |
|---------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|--------------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Cloey Romans                                                                           | Team:<br>Squad #15                                                                                     | CCRB Case #:<br>202006294                  | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                                         |                                                                                                        |                                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 09/14/2020 9:00 AM, Monday, 09/14/2020 12:00 PM, Monday, 09/14/2020 3:00 PM | Location of Incident:<br>300 Schermerhorn Street, Room 804; § 87(2)(b); the 84th Precinct Stationhouse | 18 Mo. SOL<br>5/4/2022                     | Precinct:<br>84                                        |                                               |                                 |
| Date/Time CV Reported<br>Wed, 09/16/2020 12:15 PM                                                       | CV Reported At:<br>CCRB                                                                                | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Wed, 09/16/2020 12:15 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Michael Gargano   | 24508  | 938534 | 084 PCT |
| 2. DT3 Christophe Thomas | 12968  | 947540 | INT CIS |
| 3. POF Melissa Andrade   | 12525  | 965926 | 073 PCT |
| 4. POF Darlene Guillen   | 03475  | 966091 | 084 PCT |
| 5. PO Faedlie Jacques    | 19831  | 965215 | 084 PCT |
| 6. PO Sorely Nunez       | 08976  | 957907 | 084 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. PO Yamin Rahman  | 03845     | 947374 | 073 PCT  |
| 2. PO Kyanna Simon  | 13401     | 966852 | 073 PCT  |
| 3. PO Travis Uzwy   | 01994     | 966893 | 105 PCT  |
| 4. LT Angel Vasquez | 00000     | 931365 | 084 PCT  |

| Officer(s)                | Allegation                                                                       | Investigator Recommendation |
|---------------------------|----------------------------------------------------------------------------------|-----------------------------|
| A . POF Melissa Andrade   | Abuse: Police Officer Melissa Andrade entered 300 Schermerhorn Street, Room 804. | A . Exonerated              |
| B . POF Darlene Guillen   | Abuse: Police Officer Darlene Guillen entered 300 Schermerhorn Street, Room 804. | B . Exonerated              |
| C . PO Sorely Nunez       | Abuse: Police Officer Sorely Nunez entered 300 Schermerhorn Street, Room 804.    | C . Exonerated              |
| D . POM Michael Gargano   | Abuse: Police Officer Michael Gargano entered 300 Schermerhorn Street, Room 804. | D . Exonerated              |
| E . POM Michael Gargano   | Discourtesy: Police Officer Michael Gargano spoke discourteously to § 87(2)(b)   | E . Unfounded               |
| F . DT3 Christophe Thomas | Abuse: Police Officer Christophe Thomas entered § 87(2)(b)                       | F . Unsubstantiated         |
| G . DT3 Christophe Thomas | Abuse: Police Officer Christophe Thomas searched § 87(2)(b)                      | G . Unsubstantiated         |
| H . POF Darlene Guillen   | Abuse: Police Officer Darlene Guillen entered § 87(2)(b)                         | H . Unsubstantiated         |

| Officer(s)              | Allegation                                                                     | Investigator Recommendation |
|-------------------------|--------------------------------------------------------------------------------|-----------------------------|
| I . POF Darlene Guillen | Abuse: Police Officer Darlene Guillen searched § 87(2)(b)                      | I . Unsubstantiated         |
| J . PO Faedlie Jacques  | Discourtesy: Police Officer Faedlie Jacques spoke discourteously to § 87(2)(b) | J . Unsubstantiated         |

## Case Summary

On September 16, 2020, § 87(2)(b) submitted this complaint to the CCRB via Call Processing System.

At approximately 9:00 a.m. on September 14, 2020, Police Officers Darlene Guillen, Sorely Nunez, and Michael Gargano of the 84<sup>th</sup> Precinct and Police Officer Melissa Andrade of the 73<sup>rd</sup> Precinct responded to two 911 calls regarding an assault in progress and dispute in Room 804 of The Holiday Inn located at 300 Schermerhorn Street, Brooklyn. Once the officers arrived at the location, they entered § 87(2)(b) and § 87(2)(b)'s hotel room (**Allegations A, B, C, and D: Abuse of Authority — Exonerated**). Once inside the room and while speaking to § 87(2)(b) PO Gargano spoke discourtesy to § 87(2)(b) (**Allegation E: Discourtesy – Unfounded**). The officers removed § 87(2)(b) to the 84<sup>th</sup> Precinct stationhouse where Detective Christopher Thomas asked § 87(2)(b) for consent to search her residence at § 87(2)(b) Brooklyn, after it was alleged by § 87(2)(b) that § 87(2)(b) stored a gun in her house. Det. Thomas obtained and documented consent to search § 87(2)(b)'s residence on BWC video and with a Consent to Search form. After doing so, § 87(2)(b) was returned to the holding cells while Det. Thomas and PO Guillen searched § 87(2)(b)'s residence. Once back in the holding cells, § 87(2)(b) attempted to revoke her consent by yelling from the cells that she did not want Detective Thomas to search her house anymore (**Allegations F, G, H, and I: Abuse of Authority — Unsubstantiated**). § 87(2)(b) was then approached by Police Officer Faedlie Jacques who spoke discourtesy to § 87(2)(b) (**Allegation J: Discourtesy – Unsubstantiated**). § 87(2)(b) was released at 1:00 p.m. with a Desk Appearance Ticket.

Multiple BWC videos were yielded for § 87(2)(b)'s arrest at the Holiday Inn and for when Det. Thomas obtained § 87(2)(b)'s consent to search, along with the search itself. No other surveillance or video evidence was obtained during the investigation.

## Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Melissa Andrade entered 300 Schermerhorn Street.**

**Allegation (B) Abuse of Authority: Police Officer Darlene Guillen entered 300 Schermerhorn Street.**

**Allegation (C) Abuse of Authority: Police Officer Sorely Nunez entered 300 Schermerhorn Street.**

**Allegation (D) Abuse of Authority: Police Officer Michael Gargano entered 300 Schermerhorn Street.**

§ 87(2)(b) provided a statement on October 5, 2020. § 87(2)(b) could not be reached for a statement. No other civilians or witnesses were identified. No officers were interviewed for allegations A-D.

It is undisputed that PO Andrade, PO Guillen, PO Nunez, and PO Gargano entered 300 Schermerhorn Street, Room 804, on September 14, 2020.

According to event information, 911 audio, and radio communication from the incident (Board Review 01-06), § 87(2)(b) called 911 at 8:48 a.m. to report a dispute with § 87(2)(b) and stated that § 87(2)(b) is holding her by her hair and won't let her go. In the background of the 911 call, § 87(2)(b) can be heard yelling for § 87(2)(b) to let go. § 87(2)(b) confirmed she had been assaulted by § 87(2)(b) and sustained an injury to her hand, then ended the call. § 87(2)(b) called 911 at 8:50 a.m. and reported that § 87(2)(b) would not let him leave his hotel room, then disengaged the call. The job was marked as a Dispute and two units were dispatched to 900 Schermerhorn Street, Room

804, one with PO Andrade and PO Guillen, and another with PO Nunez and PO Gargano.

§ 87(2)(b) stated that on September 14, 2020, she had gotten into a verbal altercation with § 87(2)(b) regarding the status of their hotel room located at the Holiday Inn Downtown Brooklyn, Room 804. § 87(2)(b) stated that the dispute became physical when § 87(2)(b) grabbed her by her hair and would not let go. § 87(2)(b) called 911 to report the incident and believed that § 87(2)(b) called 911 at the same time. § 87(2)(b) recalled telling the 911 operator that she was in distress and that § 87(2)(b) had her by her hair. Approximately six minutes later, police arrived at the hotel room. § 87(2)(b) first became aware of the officer's presence when they knocked on the door but did not recall if they announced that they were police but believed they were because she had called 911 earlier. The officers entered the hotel room immediately after knocking. § 87(2)(b) did not recall how the officers entered the room but stated that neither she nor § 87(2)(b) let them in. The officers proceeded to separate § 87(2)(b) and § 87(2)(b) (Board Review 07).

Body-worn Camera (BWC) videos for PO Gargano and PO Andrade begin as they enter the lobby of the Holiday Inn and proceed to Room 804. Upon arriving at the exterior door of the room, PO Nunez knocks on the door but neither she or any officer identify themselves as police or makes any verbal statements after knocking. § 87(2)(b) immediately responds, "Open the door" three times. PO Nunez knocks again on the closed door without a verbal response. § 87(2)(b) yells, "Open the door" three additional times. PO Nunez asks the hotel manager, who is in the hallways with the officers, if he can open the door. The manager proceeds to use a key to unlock and open the door to Room 804. While doing so, § 87(2)(b) can be heard yelling, "He's got me by my hair. Break the door down." The manager unlocks the door, steps aside, and PO Nunez, PO Andrade, PO Guillen, and PO Gargano enter the room where § 87(2)(b) is holding § 87(2)(b) by her hair. PO Guillen and PO Gargano tell § 87(2)(b) to let go of § 87(2)(b) separate the individuals, and begin speaking with them regarding the incident (Board Review 10 and 11).

People v. Doll (Board Review 12) outlines the parameters of Emergency Doctrine to justify the questioning of a defendant when responding to a 911 call. The emergency doctrine recognizes that the Constitution is not a barrier to a police officer who is attempting to assist someone in immediate danger, which therefore justifies otherwise impermissible police conduct when it is an objectively reasonable response to an apparent exigent circumstance. The means to qualify that there is an emergency and immediate need for police intervention for the protection of life must be grounded in empirical facts. The emergency doctrine allows police to conduct a warrantless residential entry without knowing if a crime has taken place inside if the incident fits within the parameters of exigent need.

People v McBride, 14 N.Y.3d 440 (Board Review 13) addresses the emergency doctrine by establishing the rule of exigency, defining exigent circumstances as situations in which warrantless entry may be permissible if the following factors are assessed prior to entry: (1) the gravity or violent nature of the offense with which the suspect within the location is to be charged, (2) whether the suspect is reasonably believed to be armed, (3) a clear showing of probable cause to believe that the suspect committed the crime, (4) strong reason to believe that the suspect is in the premises being entered, (5) a likelihood that the suspect will escape if not swiftly apprehended, and (6) the peaceful circumstances of the entry. The ruling clarifies that these factors serve as a guide for precedent, but that the list is illustrative and not to be viewed as definitive or exhaustive. Ultimately, the rule establishes that urgent law enforcement objectives justify a warrantless entry only in cases of exigency.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, C, and D** be **Exonerated**.

**Allegation (E) Discourtesy: Police Officer Michael Gargano spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated that immediately upon entering the hotel room, PO Gargano asked, “What the fuck is going on in this room?” § 87(2)(b) also alleged that when PO Gargano learned that § 87(2)(b) had broken a beer bottle on § 87(2)(b)'s bicycle tire, PO Gargano asked, “Why the fuck did you bust his bike?” (Board Review 07).

BWC videos for PO Gargano capture the incident in its entirety and all PO Gargano's interactions with § 87(2)(b). In PO Gargano's first BWC video (Board Review 10), at the 00:02:31 mark, immediately after entering the room and seeing § 87(2)(b) for the first time, PO Gargano asks, “What's going on?” PO Gargano proceeds to exit the room with § 87(2)(b) and speaks with him in the hallway while § 87(2)(b) remains in the room. In PO Gargano's third BWC video (Board Review 15), at the 00:10:55 mark, PO Gargano begins speaking with § 87(2)(b) regarding the damage to § 87(2)(b)'s bike. PO Gargano continues speaking with § 87(2)(b) until the 00:37:09 mark when PO Gargano leaves the incident location. These videos encapsulate the totality of PO Gargano's interactions with § 87(2)(b).

Additional officer BWC video was consistent with that of PO Gargano's (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be **Unfounded**.

**Allegation (F) Abuse of Authority: Police Officer Christopher Thomas entered § 87(2)(b)**

**Allegation (G) Abuse of Authority: Police Officer Christopher Thomas searched § 87(2)(b)**

**Allegation (H) Abuse of Authority: Police Officer Darlene Guillen entered § 87(2)(b)**

**Allegation (I) Abuse of Authority: Police Officer Darlene Guillen searched § 87(2)(b)**

§ 87(2)(b) stated that upon arriving at the 84<sup>th</sup> Precinct stationhouse, she was placed into the arrest holding cells by PO Andrade. An unknown amount of time later, § 87(2)(b) was approached by Det. Thomas who introduced himself and removed § 87(2)(b) from the holding cells, took her upstairs, and sat with her at a desk. § 87(2)(f)

Det. Thomas informed § 87(2)(b) that § 87(2)(b) alleged she had a gun and had threatened him with it. § 87(2)(b) told Det. Thomas that this was false. Det. Thomas asked § 87(2)(b) for permission to search her apartment for the gun, located at § 87(2)(b)

§ 87(2)(b) Det. Thomas also told § 87(2)(b) that the search would be filmed, and he would later show her the video after the search was completed. § 87(2)(b) told Det. Thomas that she did not have a gun and that he could search her house. Det. Thomas gave § 87(2)(b) a Consent to Search form, and she proceeded to sign the paper. § 87(2)(b) stated she did not feel she had a choice about signing the form because Det. Thomas had already printed it out. § 87(2)(b) believed Det. Thomas would gain entry to her apartment with her apartment keys which were removed during her arrest but did not recall having a specific conversation about this. After signing the form, Det. Thomas placed § 87(2)(b) back into the arrest holding cells. § 87(2)(b) did not know where Det. Thomas went afterward. An unknown amount of time later, a male officer who identified himself as “Jonathan” approached § 87(2)(b) and told her that she should not have provided consent for the search of her apartment, and she should not do so again in the future. The officer then left the holding cell area. § 87(2)(b) proceeded to attempt to revoke her consent from the holding cells by yelling that she had changed her mind and did not want her house searched. § 87(2)(b) could not recall the specific pedigree information of any officers who she believed heard the comments and repeatedly told the investigator, “They were all there.” § 87(2)(b) did not have any conversation with a specific officer regarding the revoke of her consent and was unaware if any officer had heard her. § 87(2)(b) did not see Det. Thomas again after he placed her back into the holding cells (Board Review 07).

During his statement, Det. Thomas stated that on September 14, 202, he was approached by PO Guillen § 87(2)(b), § 87(2)(f)

§ 87(2)(b) Det. Thomas proceeded to ask § 87(2)(b) if he could search her apartment for the gun. § 87(2)(b) provided consent verbally, at which point Det. Thomas activated his BWC. Det. Thomas provided § 87(2)(b) with a Consent to Search form, explained to § 87(2)(b) the process of the search, and assisted § 87(2)(b) in completing the form by showing her the areas which she needed to fill in. Det. Thomas stated that § 87(2)(b) was behaving normally and that he believed she was consenting willingly and cooperating. After the form was completed on camera, Det. Thomas returned § 87(2)(b) to the arrest holding cells and immediately left the stationhouse with PO Guillen and Sgt. Jeremy Berson to execute the search of § 87(2)(b)'s apartment. Det. Thomas stated nothing was recovered during the search and the officers returned to the stationhouse approximately an hour after initially obtaining the consent. Upon arriving back at the stationhouse, Det. Thomas approached § 87(2)(b) in the holding cells and told her that nothing had been found and the search was completed. Det. Thomas did not recall how § 87(2)(b) responded but described her demeanor as calm and normal. Det. Thomas stated he had no further contact with § 87(2)(b) and had no conversation with any other officer regarding § 87(2)(b) or the incident. Det. Thomas denied ever learning that § 87(2)(b) had revoked her consent. Det. Thomas stated that consent can be revoked by an individual at any point and that if he had learned it had been revoked in this circumstance, he would not have executed the search of § 87(2)(b)'s apartment. Det. Thomas was read the pedigree of the officer who identified himself as Jonathan and Det. Thomas denied knowing any officer who fit the description. Det. Thomas denied knowing any officer named Jonathan at the command (Board Review 16).

During her statement, PO Jacques, who was assigned to stationhouse security during the incident and later had a conversation with § 87(2)(b) could not recall the incident. After being explained the contours of the incident, PO Jacques still did not recall the incident or § 87(2)(b) PO Jacques denied

ever hearing a civilian yell from the arrest holding cells on the incident date. PO Jacques denied ever hearing an individual attempt to revoke their Consent to Search. PO Jacques denied ever learning that an individual had attempted to revoke their consent (Board Review 17).

Det. Thomas' first BWC video (Board Review 18) shows him obtaining consent from § 87(2)(b) in which she verbally reads the Consent to Search form and signs the paperwork cooperatively. Det. Thomas' second BWC video (Board Review 19) and PO Guillen's BWC video (Board Review 20) shows them and Sgt. Berson searching § 87(2)(b)'s apartment. Nothing is recovered during the search and at no point does any officer receive any form of communication from the precinct that § 87(2)(b) has revoked her consent. The officers have no conversation about § 87(2)(b) revoking her consent.

Stationhouse footage was unable to be obtained during the investigation.

§ 87(2)(g)

Therefore, it is recommended that **Allegations F, G, H, and I** be **Unsubstantiated**.

**Allegation (J) Discourtesy: Police Officer Faedlie Jacques spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated after being returned to the holding cells by Det. Thomas and after attempting to revoke her consent, she needed to urinate and there was no toilet in her holding cell. § 87(2)(b) began yelling that she needed to use the restroom, and no officer responded. § 87(2)(b) could not recall if any officers were present in the holding cell area. § 87(2)(b) yelled that if no one let her use the bathroom, she would go in the cell. § 87(2)(b) estimated approximately an hour elapsed and no officer took § 87(2)(b) to use the bathroom, so § 87(2)(b) proceeded to pull down her pants with the intention of using the bathroom on the floor of the cell. PO Jacques immediately entered the holding cell area from the stationhouse lobby and called § 87(2)(b) a 'bitch', told her to pull her 'fucking' pants up, and that she was "acting fucking crazy." PO Jacques then removed § 87(2)(b) from the holding cell and took her to use the bathroom in another cell. PO Jacques did not say anything else to § 87(2)(b) before returning her to her holding cell after using the toilet. § 87(2)(b) was released from the stationhouse at an unknown time with a Desk Appearance Ticket and had no further communication with any officers (Board Review 07).

During her statement, PO Jacques denied having any recollection of the incident or § 87(2)(b). PO Jacques denied ever hearing an arrestee ask to use the bathroom. PO Jacques denied ever seeing an individual attempt to relieve themselves on the floor of a holding cell. PO Jacques did not recall taking an arrestee to use the toilet in another holding cell. PO Jacques did not recall ever using the words "bitch", "fuck", or "fucking" on the incident date. PO Jacques denied ever using any discourtesies on the incident date (Board Review 17).

Stationhouse footage was unable to be obtained during the investigation.

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** be **Unsubstantiated**.

### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has been party to five CCRB complaints and has been named as a victim in 41 allegations (Board Review 21):
  - § 87(2)(b)
  - 
  - 
  - 
  - 
  -
- PO Andrade has been a member of service for 3 years and has been a subject in one CCRB complaint and one allegation, which was exonerated. § 87(2)(g)
- PO Guillen has been a member of service for 3 years and has been a subject in two CCRB complaints and four allegations, which were unsubstantiated and closed pending litigation. § 87(2)(g)
- PO Nunez has been a member of service for 7 years and has been a subject in four CCRB complaints and ten allegations, of which four were substantiated.:
  - #201910097 involved substantiated allegations of Abuse, Discourtesy, and Offensive Language against PO Nunez. The Board recommended Charges and the NYPD has not yet imposed discipline.
- PO Gargano has been a member of service for 16 years and has been a subject in seven CCRB complaints and 17 allegations, of which five were substantiated.:
  - #201807436 involved substantiated allegations of Abuse and Discourtesy against PO Gargano. The Board recommended Discipline and the NYPD imposed No Penalty.
  - #201910097 involved substantiated allegations of Abuse and Discourtesy against PO Gargano. The Board recommended Charges and the NYPD has not yet imposed discipline.
- Det. Thomas has been a member of service for 13 years and has been a subject in two CCRB complaints and three allegations, all of which were unsubstantiated. § 87(2)(g)
- PO Jacques has been a member of service for 4 years and has been a subject in two CCRB complaints and eight allegations; to this date, the investigations are still open. § 87(2)(g)

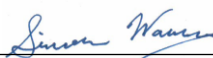
### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- As of February 22, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]



Squad: 15

|               |                     |                          |                  |
|---------------|---------------------|--------------------------|------------------|
| Investigator: | <u>Cloey Romans</u> | <u>Inv. Cloey Romans</u> | <u>3/02/2022</u> |
|               | Signature           | Print Title & Name       | Date             |

|               |                                                                                          |                      |                 |
|---------------|------------------------------------------------------------------------------------------|----------------------|-----------------|
| Squad Leader: | <u></u> | <u>IM Simon Wang</u> | <u>03/02/22</u> |
|               | Signature                                                                                | Print Title & Name   | Date            |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |